

The Kolkata Gazette

सत्यमेव जयते

Extraordinary
Published by Authority

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FRIDAY, MAY 22, 2009

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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

WEST BENGAL ELECTRICITY REGULATORY COMMISSION

No. 43/WBERC

Kolkata, the 22nd May, 2009.

NOTIFICATION

In exercise of the powers conferred by sub-sections (1) and (2) of section 181 read with clause (h) of sub-section (1) of section 86 of the Electricity Act, 2003 (36 of 2003) and all powers enabling it in this behalf, the West Bengal Electricity Regulatory Commission hereby makes the following regulations to amend the West Bengal Electricity Regulatory Commission (State Electricity Grid Code) Regulations, 2007 issued under Notification No.34/WBERC dated 04.04.2007 and published in the Kolkata Gazette Extraordinary Part I dated April 4, 2007.

1. Short Title and Commencement :

- (i) These regulations may be called the West Bengal Electricity Regulatory Commission (State Electricity Grid Code) (Amendment) Regulations, 2009.
- (ii) They shall come into force on the date of their publication in the Official Gazette.

2. After clause (iv) of regulation 3.6.4 of the West Bengal Electricity Regulatory Commission (State Electricity Grid Code), Regulations, 2007 (hereinafter referred to as the principal Regulations), following clause shall be inserted:-

- “(v) Notwithstanding anything contrary to any regulation of the Commission, STU / SLDC shall not permit any synchronization of any new unit of any generating station unless ABT compliant meters are installed and commissioned for recording the gross generation and ex-bus generation amount along with proper online real time display of such information at SLDC except for the first test synchronization, as specified in the regulations framed under section 61 of the Electricity Act, 2003, of such unit with explicit prior permission of SLDC.

Provided that for units of generating station commissioned before 1.1.2009 and 3rd unit of Budge Budge and 5th Unit of BKTPP and whose generation display is not yet available in the SLDC, such restriction shall not be applicable subject to condition that respective generating stations shall arrange to provide such generation display at SLDC within 1.1.2010."

3. For second sentence of clause (i) of regulation 5.3 of the principal Regulations, following two sentences shall be substituted:-

"The declaration shall be for that capacity which can be actually made available through delivering of energy and to be termed as Actual Declared Capacity. In addition for coal fired generating station, Notional Declared Capacity is to be also provided which reflects notional availability considering no shortage in supply of coal as specified under different provisions of regulations framed under Section 61 of the Act."

4. For the last sentence of clause (xiv) of regulation 5.3 of the principal Regulations, following sentence shall be substituted:-

"The SLDC shall receive the 'drawal schedule' from the RLDC against ISGS share along with any bilateral exchange of power, if any, by 11.00 P.M. of the day."

5. For clause (xv) of regulation 5.3 of the principal Regulations, following clause shall be substituted:-

"(xv) The SLDC shall then finalize both injection and drawal schedule and inform such schedule to be termed as initial injection schedule and initial drawal schedule for the next day to all concerned by 11.30 P.M. of the day."

6. For clause (xxi) of regulation 5.3 of the principal Regulations, following clause shall be substituted:-

"(xxi) If any running unit(s) of first four units of Bandel Thermal Power Station or of Santaldhi Thermal Power Station goes / go out of operation from running condition at any block of time, then from the next block of time, the generation of such generating plants shall be considered as scheduled generation up to 6th block or till revised schedule is obtained, whichever is less, and the injection schedule by those generating stations shall be modified by SLDC accordingly."

7. After clause (xxii) of regulation 5.3 of the principal Regulations, following proviso shall be inserted:-

"Provided, in shortfall condition, the revised schedules/ declared capacity or injection/ deemed schedule shall become effective as early as possible but within 6th block."

8. For clause (xxv) of regulation 5.3 of the principal Regulations, following clause shall be substituted:-

"(xxv) On completion of the operating day, by 24.00 hrs, the schedule finally implemented during the day (taking into account all before-the fact changes in dispatch schedule of generating stations and drawal schedule of the users) shall be issued by the SLDC. The average ex-bus capability for each of the generating stations connected with the STS shall also be worked out based on all before-the-fact advice to the SLDC. Such schedule shall be termed as provisional implemented schedule. If there is any error or point of dispute in the provisional implemented schedule, the concerned entity shall immediately bring such fact to the notice of the SLDC within three working days. On receiving such information SLDC shall take necessary action for correction, if required, and publish the finalized implemented schedule within three working days after the final implemented schedule from concerned RLDC is received. This finalized implementation schedule of SLDC shall be the datum for commercial accounting related to entities governed by these regulations and regulations framed under section 61 of the Electricity Act, 2003."

9. For the Note at the end of Annexure-III of the principal Regulations, following Note shall be substituted:-

- “ Note : i) Destination-wise injection is to be shown separately in separate column.
- ii) Column 3 represents Actual Declared Capacity.
- iii) For Notional Declared Capacity as per clause (i) of Regulation 5.3 additional column is to be added.”
- iv) At the end of the table daily information of coal receipt and consumption in MT for the day preceding the day on which such reporting takes place is to be provided.

By order of the Commission,

Place : Kolkata
Date : 22.05.2009

K. L. BISWAS,
Secretary of the Commission.